BY ORDER OF THE COMMANDER
8TH FIGHTER WING

8TH FIGHTER WING INSTRUCTION
31-218

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Security

KUNSAN AIR BASE MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements Air Force Policy Directive (AFPD) 31-1, *Integrated Defense* and Department Air Force Instruction (DAFI) 31-218, *Motor Vehicle Traffic Supervision*. It applies to all persons who operate a motor vehicle on Kunsan Air Base (AB). Failure to observe the prohibitions and mandatory provisions of this instruction by military personnel is a violation of Article 92, Uniform Code of Military Justice (UCMJ) and may also violate other articles of the UCMJ. Violations by civilian personnel may result in administrative disciplinary action. Failure to comply with prohibitions and mandatory provisions of this instruction may serve as a basis for the revocation or suspension of driving privileges consistent with United States Forces Korea Regulation (USFKR) 190-1, *Motor Vehicle Traffic Supervision*. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route the AF Form 847 from the field through the appropriate functional chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the United States Air Force.

SUMMARY OF CHANGES

This publication is substantially revised and must be completely reviewed. The section pertaining to Unattended Vehicles and parking on roadways without curbs has been removed. **Table 3.1** "Approved ETPs" has been removed and replaced with **Figure A2.1** establishing a new Exception-To-Policy (ETP) process. Parking restrictions have been updated. Legal blood alcohol limit has changes to reflect current laws. Added improperly and unregistered vehicles as reasons for impounding Privately Owned Vehicles (POVs). Added new guidance for Personal Transportation Devices (PTDs).

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Chapter 1

RESPONSIBILITIES

1.1. The 8th Fighter Wing Commander (8 FW/CC) will:

1.1.1. Ensure all matters pertaining to motor vehicle supervision are properly related to the overall installation traffic safety program.

1.1.2. 8 FW/CC has delegated each of the following approval authorities under this instruction:

1.1.3. 8th Fighter Wing Vice Commander (8 FW/CV) for suspending or revoking driving privileges and ticket rebuttals.

1.1.4. 8th Security Forces Squadron Commander (8 SFS/CC) for approval of vehicle registration requests, and driver licensing requests.

1.2. The 8th Security Forces Squadron Commander (8 SFS/CC) will:

1.2.1. Exercise primary responsibility for motor vehicle enforcement and supervision while sharing the responsibility with other staff agencies for a balanced traffic safety program.

1.2.2. Notify an individual through their unit commander when six or more traffic points have been assessed within a six-month period on an individual's driving record.

1.3. The 8th Civil Engineering Squadron Commander (8 CES/CC) will:

1.3.1. Plan, construct and maintain streets and roadways.

1.3.2. Procure, construct and maintain permanent traffic control devices and parking enforcement with 8 SFS/CC and 8th Fighter Wing Safety Office (8 FW/SE).

1.3.3. Oversee the Reserved Parking Program. The Chairmen of the Traffic Safety Working Group is the 8th Mission Support Group Deputy Commander (8 MSG/CD or 8 MSG/DD).

1.3.4. Ensure traffic signs, signals and pavement markings conform to standards.

1.4. 8th Logistics Readiness Squadron Distribution Deployment Operations Office. (8 LRS/LGRDDO) will:

1.4.1. Ensure Vehicle Operators Records and Licensing maintains the AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*.

1.5. Unit Commanders will:

1.5.1. Ensure all personnel within their area of responsibility are familiar with the contents of this instruction.

1.5.2. Ensure all personnel within their responsibility report all accidents to the 8 SFS/Base Defense Operations Center (BDOC) at DSN 315-782-4944 or commercial within 24 hours of the accident for off-base incidents regardless of accident location, injuries, or operator fault. All on-base accidents must be reported immediately.

1.5.3. After consultation with the 8 FW Staff Judge Advocate (SJA) and as appropriate, ensure all personnel within their scope of responsibility submit to drug/and or Alcohol testing within 24 hours of a suspected alcohol related motor vehicle/traffic accidents or incidents.

1.5.4. Ensure all personnel within their responsibility with suspended/revoked licenses have their driving privileges properly reinstated by contacting 8th Security Forces Squadron Reports and Analysis section (8 SFS/S5R) and ensure a reinstatement of driving privileges memorandum is completed and on file with 8 SFS/S5R.

1.5.5. Ensure individuals are scheduled to attend the Driver Improvement Program (DIP), Course V. These individuals consist of those who display poor or unsafe attitudes or behaviors, are found at fault in a vehicle accident, have six or more points assessed from traffic violations within a six-month period, or are subject of suspected driving under the influence (DUI) on- or off-base. The DIP program is directed from the violator's Squadron Commander or First Sergeant and is required by 8 SFS/S5R to re-issue suspended licenses. For further questions contact, 8 FW/SEG, 782-4557.

Chapter 2

LICENSING

2.1. Authorization of Driving Privileges. Any person assigned or attached to Kunsan AB who possesses a USFK Form 134EK, *USFK Motor Vehicle Operator's Permit* will be authorized to drive/operate a motor vehicle on the peninsula. A valid United States (U.S.) issued state driver's license may be used as a temporary permit for 30 days after initial arrival in the Republic of Korea (ROK) in conjunction with PCS orders for Status of Forces Agreement (SOFA) assigned personnel. In order to obtain a motor vehicle license the operator must show proof of one of the following forms of identification prior to obtaining a US Military driver license:

2.1.1. US driver's license.

2.1.2. International driver's license.

2.1.3. Korean issued driver's license.

2.2. Eligibility. Any person assigned or attached to Kunsan AB operating a government owned vehicle will have in their possession a valid AF Form 2293.

2.2.1. All Korean civilian employees who operate government motor vehicles or non-appropriated funds vehicles (to include Army and Air Force Exchange Service (AAFES) registered vehicles) must possess a valid ROK driver's license issued by the Korean Government and an AF Form 2293 issued by 8 LRS/LGRDDO. Korean civilian employees operating government motor vehicles or non-appropriated funds vehicles off-base must have a valid ROK driver's license for the specific class of vehicle being operated.

2.2.2. Civilian contractors who operate Government Owned Vehicles (GOVs) on Kunsan AB must possess a valid ROK driver's license issued by the Korean Government and an AF Form 2293 issued by 8 LRS/LGRDDO. The contracting officer must certify individuals are trained, licensed, and physically qualified to operate GOVs and briefed on official use policies. This will be accomplished by letter, listing each individual and the types of vehicles they operate. Certification letters must be signed by the contractor and coordinated through the Air Force contracting officer. The contracting officer will validate the contractor is authorized to operate GOVs in accordance with contract requirements. This letter will be updated as necessary and remain on file in the Operator Record and Licensing (OR&L). After this is accomplished, a valid AF Form 2293 will be issued.

2.2.3. All SOFA status USFK military personnel, USFK civilian appropriated and non-appropriated employees, USFK technical representatives, and family members of the aforementioned personnel must possess a USFK Form 134EK to drive Privately Owned Vehicles (POVs) on U.S. installations and Korean roadways. SOFA status operators of privately owned vehicles are required to pass a written examination administered by 8 LRS/LGRDDO on Korean traffic laws and road signs.

2.2.3.1. To obtain a motorcycle endorsement on a USFK Form134EK, the applicant (all personnel) must first have a valid motorcycle operator's license or motorcycle endorsement issued by the civil authorities of a country or by a U.S. State or territory of the United States. Additionally, military personnel must also show proof of completion of a Motorcycle Safety Foundation (MSF) course or Deputy Under Secretary of Defense (DUSD)(I&E) endorsed, State-approved, curriculum for motorcycle operator's safety training. Operators of mopeds, with an engine displacement of 49cc or less, are not required to obtain a valid U.S. state or territory motorcycle operator's license or motorcycle endorsement.

2.2.3.2. USFK Invited Contractor and USFK third-country national employees and their family members are authorized, but not required, to obtain a USFK Form 134EK as long as they are first in possession of a ROK driver's license or valid international driver's permit prior to obtaining the USFK Form 134EK. This requirement is established in the US-ROK SOFA Agreement and cannot be waived.

2.3. Personal Transportation Device (PTD) Licensing Requirement.

2.3.1. All personnel assigned or attached to Kunsan AB who desire to operate a PTD must meet the following requirements:

2.3.2. Complete USFK PTD Training Course located on Joint Knowledge Online (JKO).

2.3.3. Complete Safety briefing with Safety Office.

2.3.4. Complete USFK Form 190-1P, *Personal Transportation Device Counseling and Endorsement Worksheet* or AF Form 4391, *Hi-Risk Activities Worksheet*, with Chain of Command.

2.3.5. Provide proof of completion to 8 SFS/Pass & ID office to receive USFK PTD operator's permit.

2.3.6. A USFK PTD Operators Permit is valid for 5 years unless an individual's PTD Operators Permit is suspended or revoked.

2.4. Implied Consent Provisions.

2.4.1. Implied consent to blood, breath, or urine tests. Individuals who operate a motor vehicle on Kunsan AB automatically give their consent to chemical tests for alcohol or drug content of their blood, breath, or urine. It is implied that, if lawfully stopped, apprehended or cited for an offense committed while driving or in control of a motor vehicle, the individual has given "implied consent" to the search of their person. An individual's refusal under the "Implied Consent" provision will automatically result in a 1-year revocation of driving privileges. Before a license is issued, the individual applying for the license will read the implied consent brief on the back of USFK Form 134EK. The applicant's 's signature on the USFK Form 134EK constitutes acknowledgment and acceptance of this policy.

2.4.2. Implied consent to impoundment. Any person granted the privilege to operate or register a motor vehicle on a military installation shall be deemed to have given their consent for the removal and temporary impoundment of the motor vehicle when it is parked illegally, or for unreasonable periods. The 8 MSG/CC will determine if the situation interferes with military operations, creates a safety hazard, was disabled by accident, left unattended in a restricted or controlled area, or abandoned. The owner also agrees to reimburse the United States for the cost of towing and storage should their motor vehicle PTD be removed or impounded. Existence of these conditions will be determined by the 8 MSG/CC.

2.4.3. Motor vehicle or criminal infraction. Any person who operates, registers, or is in control of a motor vehicle on a military installation involved in a motor vehicle or criminal infraction will be informed by the 8 SFS/S5R.

Chapter 3

MOTOR VEHICLE REGISTRATION

3.1. Authorization Criteria. A motor vehicle is any motor-driven vehicle manufactured primarily for use on a public street, road or highway. Mopeds, bicycles, and scooters with a motorized engine, regardless of engine size, are considered motor vehicles with regard to following the rules of the road outlined in this instruction. As general policy, regardless of SOFA privilege status, only one POV per sponsor may be registered with a USFK motor vehicle recorder as outlined in **USFKR 190-1. All SOFA USFK doctrine concerning vehicle POV and registration is available in USFKR 190-1.**

3.2. A POV may be registered on Kunsan AB by:

3.2.1. A member of the U.S. Armed Forces in the grade of E-7 or above. All others refer to the Exception to Policy stated in **paragraph 3.4** Members must meet applicable license requirements identified in paragraphs 2-1a, b, or c of USFKR 190-1.

3.2.1.1. Requester will include signed memorandum indicating member has been briefed and understands towing and impoundment procedures on Kunsan AB as well as their liability for the towing, storing and/or disposing of a vehicle that is lawfully moved and impounded.

3.2.2. Military members who are married to other military members at Kunsan AB retain their vehicle authorization based on their individual entitlements if they are E-7 or above. Members must meet applicable license requirements identified in paragraphs 2-1a, b, or c of USFKR 190-1.

3.2.3. Department of Defense (DoD) civilian employees in the grades of General Schedule (GS)-5, Wage Grade(WG)-5, Working Leader (WL)-2, Wage System (WS)-1, Non-appropriated Fund (NAF)-5 and Commissioned Corps (CC)-3 or equivalent and above; USFK technical representatives; and USFK Invited Contractors. **NOTE:** Dependents of military, DoD civilians, and SOFA contractors who are themselves a civilian employee, may NOT register a vehicle. If the dependent employee gets locally hired as either an AF/NAF DoD Civilian or as a contractor, it does not affect or change their status as a dependent. Members must meet applicable license requirements identified in paragraphs 2-1a, b, or c of USFKR 190-1.

3.2.4. Non-SOFA personnel (e.g., U.S. Military or DoD civilian retiree, U.S. Military reservist assigned to a unit in Korea, widow/widower of a US Military retiree, un-remarried former spouse of U.S. Military retiree, Korean General Schedule (KGS) employee, non-SOFA contractor, and ROKAF personnel, etc.). **NOTE:** This includes any member of the USFK or its civilian component authorized shipment of a POV to the ROK at Government expense, except if that person is E- 6 and below and resides in unaccompanied housing on base. Members must meet applicable license requirements identified in paragraphs 2-1a, b, or c of USFKR 190-1.

3.2.5. KGS employee registration requests will be managed by the Kunsan Civilian Personnel Office (CPO) due to restrictions that will apply IAW specific union agreements with the FW/CC. Employees will direct any questions to the CPO Labor and Employee Relations Section.

3.2.6. Kunsan AB only. Vehicle, Motorcycle and Scooter/Moped registration is not allowed for TDY personnel. Only permanent party personnel stationed at Kunsan AB or associated Collocated Operating Bases (COBs) will be allowed to register motor vehicles.

3.3. Registration Process.

3.3.1. All authorized motor vehicles will be registered with the 8 SFS Pass & Registration Section (8 SFS/S5B) within 10 days after the vehicle is received from a port of entry, motor vehicle pickup point, purchased, or otherwise legally acquired. Vehicles that do not comply with this regulation will not be registered or issued a USFK Registration decal. USFK Form 192 EK, *Temporary Vehicle Pass*, may be issued during this 10 day grace period.

3.3.2. The USFK Form 31EK-E, *Application for Registration of USFK Privately Owned Vehicle* (POV), will be accomplished to register a motor vehicle. Vehicle registrations are valid for 3-years or Date Eligible for Return from Overseas (DEROS) (non-SOFA personnel the expiration on their USFK Form 37EK), whichever expires first. All vehicle registrations will be entered into the Defense Biometric Identification System (DBIDS).

3.3.3. Before an initial registration, POVs must pass a safety inspection conducted within the last 30 days at a USFK certified motor vehicle mechanical safety inspection facility. POVs must undergo safety inspection and emission testing every 2-years thereafter, unless ownership changes. The only exception to the safety inspection requirement is for vehicles less than 2 years old as determined by the manufacture date or model year, whichever is older. The exception for these vehicles will be valid for two years from manufacture date.

3.3.4. SOFA registered vehicles, cars, motorcycles and mopeds must also be registered at the Gunsan Vehicle Registration Office, including vehicles with an engine displacement of 49cc or greater.

3.3.5. All motorcycles and mopeds, regardless of engine size, will be registered at the Okeso-Myon Township Office located at #208 Okgu Jeo-Su_Ji-Ro, Okseo-Myon, Gunsan City.

3.4. Exceptions to Policy (ETP).

3.4.1. ETP can be created by USFK Area/Installation Commanders. The 8 FW/CC is the designated Area Commander for Kunsan AB. The 8 FW/CC has the responsibility for determining approval procedures for registration of additional or multiple vehicles within a family or for SOFA personnel not identified in paragraph 3-1b in USFKR 190-1. Area Commanders may not approve exceptions to provisions established by ROK law USFKR 190-1, 5-33.

3.5. Government Owned or Rental/Leased Vehicles.

3.5.1. All US government owned or leased Non-Tactical Vehicles (NTVs) that are licensed for operations on public roadways will be issued a bar-coded DBIDS vehicle registration decal. The DBIDS vehicle registration decal will be displayed on the lower left corner of the windshield. The DBIDS NTV vehicle decal will remain valid as long as the US Government retains ownership of the vehicle.

3.5.2. In cases where contractors, Temporary Duty (TDY)/Temporary Additional Duty (TAD) personnel or military units or agencies use rental or leased vehicles to provide services for the command, Pass & Registration may issue a USFK Form 192EK, for a period not to exceed 60 days. For rental/lease periods in excess of 60 days, Pass & Registration will issue a DBIDS sticker valid for the length of the contract.

3.6. Registration Decals.

3.6.1. Vehicles properly registered and displaying an USFK vehicle registration decal may be granted access to authorized USFK installations IAW the DBIDS access authorization of owner/operator. In order to obtain appropriate vehicle access documents, owners must obtain approval to register and operate the vehicle on USFK installations IAW USFKR 190-7, *Installation Access Control*.

3.6.2. All SOFA POV owners will deregister, or make legal arrangements for deregistration of their vehicles before permanently departing from this command by reporting to the Pass & Registration Office for a vehicle registration clearance check.

3.6.3. The decal will be affixed to the inside of the vehicles bottom left corner of the front windshield. When a motor vehicle is sold to another authorized individual, the buyer must ensure a new registration decal is affixed after reregistering the vehicle. Applicants must bring their vehicle and registration paperwork to bldg. 1310. Only one sticker is authorized on a vehicle at a time.

3.6.4. Additionally, vehicles must have license plates permanently fixed to the front and rear of the vehicle. There are no exceptions to this policy as this requirement is also a requirement in the Korean Roads and Traffic Act.

3.6.5. A DBIDS Motorcycle decal will also be issued for applicants registering bicycles equipped with an engine.

3.6.6. On motorcycles/mopeds without a front windshield, the registration decal will be affixed to the front of the vehicle where gate personnel can see it as the vehicle approaches the gate.

3.6.7. Non-SOFA employees and their family members must obtain a vehicle inspection certificate issued by the ROK government in lieu of the safety inspection.

Chapter 4

TRAFFIC CITATIONS

4.1. Non-moving Violations.

4.1.1. The following actions will be taken against military and civilian personnel assigned to Kunsan AB, ROK who receive one or more non-moving violations within a one-year period.

4.1.1.1. 1st violation: Violators will be counseled by their supervisor.

4.1.1.2. 2nd violation: A written notice will be attached to the second citation and forwarded to the violator's unit commander to complete a report of action taken. This written warning will be provided to the violator by the commander or first sergeant informing them a third non-moving violation will result in suspension of driving privileges. Commanders will also consider suspending driving privileges for not less than 30 days when individuals receive two violations within a 60 day period.

4.1.1.3. Three or more violations: Installation Commander will determine the driving privileges to be suspended for a period not less than 30 days but not more than 6-months

4.2. Moving Violations. Refer to USFKR 190-1, Appendix C, DAFI 31- 218, Chapter 5, and AFI 31-115, *Law and Order Operations.*

4.3. Administrative Procedures.

4.3.1. Administrative processing for traffic violations will be accomplished within a 30-day period starting on the date the Armed Forces Traffic Ticket is issued.

4.3.2. Unit commanders will be notified via email from 8 SFS/S5R after 5-duty days from the date of the citation.

4.3.3. Individuals will be allowed to submit additional information for the commander's consideration. The commander's decision and actions will be recorded on the Report of Action and returned to 8 SFS/S5R. The individual's driving record will be updated to indicate the appropriate driving points assessed and driving privilege suspensions or revocations, if applicable.

4.4. Rebuttal Procedures.

4.4.1. The rebuttal process is intended to provide individuals that receive traffic citations an opportunity to submit additional information in defense, mitigation or extenuation. To allow for package preparation and review the rebuttal process can take up to 60 days.

4.4.2. Individuals who wish to rebut a citation must notify 8 SFS/S5R within 5 duty days of the date of the receipt citation with the intent to rebut. Rebuttals must be submitted in writing within 14 calendar days from the date of the citation. The request must include the endorsement and recommendation of the unit commander. The right to rebut a citation is automatically forfeited if a request is not submitted within the time allowed.

4.4.3. If practical, the patrolman who issued the citation will accomplish an AF Form 1168, *Statement of Suspect/Witness/Complaint*, which, along with the completed rebuttal request, will be forwarded to the 8 SFS/CC for final decision. Once determined, 8 SFS/S5R will notify the violator of the result.

4.5. Administrative Procedures for Republic of Korea Citations.

4.5.1. Korean National Police (KNP) conducts DUI check points at various locations within cities throughout Korea. All SOFA personnel stopped at a KNP DUI checkpoint must comply with instructions from KNP officials.

4.5.2. Individuals that receive KNP traffic tickets or other moving traffic violations must make every effort to resolve the violation. Contact Gunsan City Hall at commercial +82-63-454-4000 and provide the vehicle's license plate number. City Hall representatives will provide the fine amount and an account number to deposit the payment.

4.6. Suspension/Revocation of Driving Privileges.

4.6.1. The traffic points system established in DAFI 31-218 and AFMAN 31-115v1, *Department of the Air Force Corrections System*, will be used for violations.

4.6.2. Even though the 8 MSG/CC is the final authority on all traffic violation related suspensions and revocations, squadron commanders are also authorized to take action to restrict an individual's driving privileges as part of other administrative actions.

4.6.3. When an individual's driving privileges are suspended or revoked, 8 SFS/S5R will notify the 8 LRS/LGRDDO appointed by the 8th Logistics Readiness Squadron Commander (8 LRS/CC), respective unit commander, and licensing state to ensure timely documentation in permanent driver's records. The individual will also receive a copy of the final decision.

4.7. Standards and Procedures for Processing Intoxicated Drivers.

4.7.1. Alcoholic beverages may not be open or consumed in a vehicle, whether moving, stopped, or parked. An open container is defined as any container that has been opened, has been punctured or has a broken or torn seal and is not securely packed in the luggage compartment. Such a container, especially in reach of the driver, is an indicator of potential intoxicated driving.

4.7.2. Intoxicated driving includes on- or off-base driving and/or being in physical control of a motor vehicle while intoxicated.

4.7.3. Any level of intoxication while driving can result in negative consequences, but levels below 0.03 (absent other indicators) are generally allowable in the ROK on- and off-base. SFS will contact Republic of Korea Air Force (ROKAF) or KNP for assistance in situations where there is a need to determine the Blood Alcohol Content (BAC) of a suspected non-US Military intoxicated driver.

4.7.4. Administrative Results of Intoxicated Driving. Currently, a BAC of 0.03 percent or greater is illegal in the Republic of Korea, thus exceeding it on- or off-base is against the law, but is not to be confused with the UCMJ limit. Depending on the driver, the location and the level of intoxication, consequences of intoxicated driving range from administrative action and driving privilege revocation to fines and/or criminal/civil prosecution. The administrate procedures include the following:

4.7.4.1. 8 SFS personnel will immediately issue a preliminary Notice of Suspension of Driving Privileges Letter to those (military personnel, retired members of the military services, DoD civilian personnel, family members, and others with installation driving privileges) suspected of intoxicated driving, after contacting the revocation authority, 8th Mission Support Group Commander (8 MSG/CC). The revocation authority will immediately decide whether to suspend the individual's driving privileges until resolution of the allegation. This applies regardless of the geographic location of the incident.

4.7.4.2. After a review of available evidence the revocation authority will suspend (or deny non-DoD affiliated personnel) driving privileges when (on or off-base) intoxicated driving has been demonstrated as meeting the circumstances outlined below:

4.7.4.2.1. Upon notification of an arrest report or other official document reasonably showing an intoxicated driving incident occurred.

4.7.4.2.2. Upon determination of operation of a motor vehicle with BAC of 0.03 percent or higher as measured by KNP or SFS devices which may include the Portable Breathalyzer Test (PBT) even though it may not be admissible in court.

4.7.4.2.3. Refusal to take or complete a lawfully requested chemical test to determine contents of blood for alcohol or other drugs.

4.7.4.3. Driving privileges will be revoked for a mandatory period of not less than 1 year in the following circumstances:

4.7.4.3.1. The installation commander or designee (8 MSG/CC) has determined that the person lawfully apprehended for driving under the influence refused to submit to or complete a test to measure the alcohol content in the blood, or detect the presence of any other drug as required by the law of the jurisdiction or installation traffic code or by Service directive.

4.7.4.3.2. The revocation authority determines a conviction, nonjudicial punishment, or a military or civilian administrative action resulting in the suspension or revocation of driver's license for intoxicated driving. If the ROK conviction would normally have resulted in the loss of Korean driving privileges, but does not due to the technicalities of SOFA, the revocation authority must still revoke for a 1 year minimum. Appropriate official documentation of such conviction is required as the basis for revocation. Administrative determinations of intoxicated driving do not necessarily equate to "a drunken driving offense", thus for administrative purposes the revocation authority can impose a lesser revocation period (6 months) when the above conditions are not met, but the authority reasonably believes intoxicated driving occurred.

4.7.4.4. The revocation authority will revoke driving privileges for a period of 5 years for any person apprehended when driving while under suspension or revocation.

4.8. Right to Administrative Hearing: Preliminary suspension of driving privileges will be explained to violators in a letter issued by the 8 SFS Patrolman.

4.8.1. All personnel who are authorized to operate a GOV or motor vehicle on Kunsan AB will have their USFK Form 134EK and AF Form 2293 confiscated for any alcohol-related incident. Once their suspension becomes effective they may not operate a motor vehicle using a USFK Motor vehicle Operator's Permit anywhere in the Republic of Korea. They will not operate a GOV or utilize a Korean civilian driver's license, and they may not operate a vehicle on any USFK installation until further notice.

4.8.2. For further questions refer to Preliminary Suspension of Kunsan AB Driving Privileges Memorandum or USFKR 190-1.

Chapter 5

SAFETY REQUIREMENTS

5.1. General Safety Policies.

5.1.1. No person will operate a motor vehicle, trailer, or semi-trailer unless the equipment is in good working order and the vehicle is in a safe mechanical condition to avoid injury/damage to the driver, passengers, other persons or property.

5.1.2. All vehicle loads must be safely secured to prevent loss of any equipment or materials being transported.

5.1.3. Personnel will not operate a vehicle exceeding normal seating capacity. (i.e., 4 passenger in a 3 passenger vehicle).

5.1.4. All persons operating or riding in a motor vehicle on-base must wear a functioning seat belts/shoulder harness, to include AAFES taxis. The driver is responsible and can be issued a DD Form 1408*, Armed Forces Traffic Ticket*, if passengers are not wearing seatbelts. All military personnel operating or riding in a motor vehicle off-base must wear functioning seat belts/shoulder harness.

5.1.5. Foreign and U.S. manufactured vehicles of model years 1966 and newer must have installed occupant protective devices within the passenger compartment of the vehicle. Vehicles manufactured before 1966 must have occupant restraints installed if required by host-state or nation laws.

5.1.6. While on base for duty purposes only, personnel may be transported in the cargo area of a truck if the vehicle is equipped with permanent side rails and a tailgate. All fixed seats with occupant restraints must be used before using the cargo area for transport. When using the cargo area, members will sit with their backs against fixed, non-movable sides. No personnel are authorized to ride sitting against a tailgate. Transport is limited to military installations and for short distances only. When traveling off the installation, personnel must utilize fixed seats with occupant restraints. Personnel are not authorized to ride in the cargo area of Low-Speed Vehicles (LSVs).

5.1.7. Every motor vehicle operated singularly or when towing any other vehicle will be equipped with mirrors that give the driver a view of the road for a distance of at least 200 feet to the rear of the motor vehicle.

5.1.8. The driver's view will not be obstructed to the front, rear or sides of the vehicle. At no time will drivers place a vehicle in motion unless and until they have ensured all weather deposits (i.e., frost, ice, snow) or other view obstructions have been removed from all front, rear, and side windows to provide clear visibility in all directions.

5.1.9. All motor vehicles will be equipped with a muffler in good working order.

5.1.10. The operator of a vehicle following a bus or meeting a bus from the opposite direction, which has stopped for to receive or discharge passengers will come to a complete stop and not proceed until the bus resumes motion.

5.1.11. When operating a government vehicle in reverse, the driver will use due care as follows. Vehicles will not back up in such a way as to interfere with other traffic. The distance an operator may back up a motor vehicle will be the absolute minimum needed to negotiate a turn. The driver of a government vehicle will always back into a parking space when parking. The driver will exhaust all means to locate and utilize a spotter when backing up during low visibility or any time line of sight may be obstructed. If two or more personnel are in the vehicle, at least one or more individual(s) will act as a spotter regardless of the circumstances. Prior to initiating any vehicle motion, drivers and spotters will ensure the immediate area is clear of any vehicles, personnel or obstructions. Spotters will maintain a clear line of sight with the driver at all times. Spotters will remain in place until the driver has completed backing or any other activity that requires the use of a spotter. If a spotter is not available after exhausting all means, the driver will walk around the vehicle, check for obstructions, and honk the horn two to three times before moving in order to alert nearby personnel. The driver will also utilize four-way flashers (if available) while backing during low visibility to alert any vehicles and personnel in the immediate area of the maneuver. If possible all drivers will position/park vehicles by backing and heading out rather than heading in and backing out.

5.1.12. Equipment items, including Recreational Motor Vehicles (RMV) (i.e., golf carts) will not be driven on roadways without a Wing Commander approved risk assessment.

5.2. Traffic During Reveille or Retreat. All personnel driving a vehicle shall immediately pull to the right side of the roadway or traffic lane and stop when reveille or retreat is sounded.

5.3. Child Safety Restraint System. Each child under the age of four or weighing 40 pounds or less must be properly secured in an approved child safety restraint system in the back seat of the vehicle, as equipped. Children between 41 and 80 pounds or who are 4 to 8 years of age must be secured with a seatbelt and seated in an approved booster seat in the back seat of the vehicle.

5.4. Personal Electronic Devices (PEDs).

5.4.1. Wearing headphones and earphones is prohibited while operating any motorized vehicle or bicycle on Kunsan AB. This does not prohibit wearing hearing protection when conditions and good judgment dictate its use, such as when driving in noise hazard areas, operating heavy machinery, and in locations where aircraft are operating.

5.4.2. Personnel subject to this regulation are restricted from using mobile PEDs such as a hand held cellular phones, iPhones, Blackberries, Personal Digital Assistants (PDA), or similar devices while operating a motor vehicle on or off military installations unless the vehicle is safely parked or they are using a “hands free” device such as vehicle speakers and “Bluetooth” ear devices.

5.4.3. All personnel operating a vehicle on-base are restricted from watching a video device while the vehicle is in motion. A video device is defined as any device displaying videos or video feed visible to the vehicle driver that may distract the driver from paying full attention while driving. This means that dash mounted, in dash, or portable devices displaying anything other than a navigation mapping system is precluded from being viewed by the driver while the vehicle is in motion.

5.4.4. All vehicle operators on Kunsan AB who violate the PED use policy will have their on-base driving privileges immediately suspended for 30 days. Violators will be issued a DD Form 1408 and a notification of suspension letter. A second violation will result in a 6 month suspension of driving privileges, and a third violation will result in a 1-year revocation of driving privileges.

5.4.5. The use of portable headphones, earphones, cellular phones, iPods, or other listening and entertainment devices (other than hearing aids) while walking, jogging, running, bicycling, skating, skateboarding or using any other Personal Transportation Device (PTD) on and near roadways is prohibited**.** Use of listening devices impairs recognition of emergency signals, alarms, announcements, approaching vehicles, human speech, and outside noise in general.

5.5. Two-Wheeled Vehicle Operations.

5.5.1. Safety Equipment:

5.5.1.1. IAW AFI 91-207, *The US Air Force Traffic Safety Program*, head protection, eye protection, protective clothing and foot protection are mandatory when operating 2-wheeled vehicles.

5.5.1.1.1. No person will operate or ride a motorcycle, motor scooter, or moped on- or off-base unless wearing protective headgear and impact resistant eye protection. Eye protection is defined as a "device designed to protect the eyes while operating or riding a motorcycle/moped." Eye protection that is tinted is prohibited while operating a motorcycle/moped during the hours of darkness.

5.5.1.1.2. The operator and passenger will have the chinstrap of their helmets fastened and secured in place when a motorcycle, moped, motor scooter, Segway, or bicycle is in motion. Motorcycles and mopeds that are used to transport a passenger must be equipped with passenger footrests unless the vehicle is equipped with a sidecar or enclosed cab.

5.5.1.1.3. During the hours of darkness all motorcycles, mopeds, and bicycles will be equipped with a white front light visible for 500 feet and red reflector or light clearly visible from the rear for 100 feet. Motorcycles and mopeds must have a lighted headlight on at all times.

5.5.1.1.4. Motorcycles and mopeds will be equipped with a horn or warning device that can be heard at least 100 feet away.

5.5.1.1.5. No bundles or articles will be hand-carried while riding a motorcycle, moped, or bicycle. Oversized loads that obstruct front or rear vision are prohibited. Both hands must be on the handle bars at all times, except when employing hand signals for turns and unmarked stops.

5.5.1.1.6. Operators will wear protective clothing to include: Long sleeved shirt or jacket, long trousers and full fingered gloves. Gloves will be made of leather or other abrasion-resistant material. Clothing that is bright in colors or reflective is highly encouraged.

5.5.1.1.7. Foot protection includes sturdy over-the-ankle footwear that supports protection for the feet and ankles.

5.5.2. Personal Transportation Device (PTD): Bicycles, Uni-Wheels, Segways, Motorized Scooters (gas/electric) and all other motorized recreational vehicles will ride as near to the right side of the roadway as practical and will follow the same traffic safety rules as motor vehicles, (e.g. one-way roads, stop signs, turn/hand signals).

5.5.2.1. PTD operators under 13 years of age will not operate in a traffic environment.

5.5.2.2. All PTD operators who are operate on installation roadways are required to wear a brightly colored outer garment during the day, an outer garment containing retro-reflective material at night and a properly fastened approved (i.e., Consumer Product Safety Commission, American National Standards Institute (ANSI), Snell Memorial Foundation or host nation equivalent) bicycle helmet.

5.6. Skateboards and Scooters.

5.6.1. All personnel must wear a protective helmet/headgear when riding a bicycle or skateboard on Kunsan AB. This includes non-motorized equipment such as roller skates, razors/scooters, and other types of wheeled shoes. Headgear will meet the specification set by the Snell Memorial Foundation, the American National Standards Institute, (ANSI Z90.1) or Federal Motor Vehicle Safety Standard (FMVSS) No. 218. Korean made helmets with equivalent certifications are acceptable.

5.6.2. Using government issued Kevlar field helmets is prohibited as these helmets do not meet ANSI Standard Z90.1.

5.7. Speed Limit Enforcements.

5.7.1. Operators will not exceed posted speed limits. Operators will drive at a safe and appropriate speed when approaching and crossing an intersection, a curve, the crest of a hill, traveling upon any narrow or winding roadway and, when special hazards exist, with respect to pedestrians or other traffic or by reason of weather or roadway conditions.

5.7.2. No person may drive a motor vehicle at such a low speed as to impede the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with any lawful order affecting the movement of vehicles.

5.7.3. Emergency vehicles are authorized to exceed posted speed limits to meet response requirements.

5.7.4. 8 SFS will enforce posted speed limits by approved speed measuring devices, electronic speed detector signs, and pacing.

5.8. Pedestrian Safety. Drivers must yield the right-of-way and slow down or stop to yield to a pedestrian crossing the roadway within a crosswalk. Drivers will not pass vehicles that have stopped to yield to pedestrians in the roadway.

5.9. Fix-It Traffic Tickets. Security Forces personnel performing law enforcement duties may at any time require drivers to submit to a vehicle inspection, if there is reason to believe the vehicle is unsafe, not properly equipped, or the equipment is not properly adjusted or requires repair.

5.9.1. If a traffic citation is issued, the driver will be directed to report to BDOC within 72 hours with proof the repairs or adjustments are corrected. The citation will include a full description of the unsafe condition that must be corrected, (i.e. defective headlight or tail light, inoperative windshield wiper).

5.9.2. Failure to correct a vehicle's unsafe conditions within 72 hours will result in the citation being processed for a point assessment. Drivers cited for operating a vehicle with an unresolved "Fix-It Ticket" may be cited for "Knowingly Operating an Unsafe Vehicle," and the vehicle ordered off the road and its registration revoked.

5.10. Troop Formations and Base Shuttle.

5.10.1. Vehicle operators will yield the right of way to all military troop formations. Vehicles operators will stop for the base shuttle and are prohibited from passing.

5.10.2. Troop formation supervisors will ensure adequate road guards are posted. Road guards should be positioned on all four corners of the formation. Road guards will wear traffic safety vest during the hours of darkness or reduced visibility.

5.10.3. Passing of troop formations is allowed; however, it is incumbent upon vehicle operators to ensure passing the formation can be done safely.

5.10.4. The speed limit when passing a troop formation is 10 mph (16 kph). This speed zone begins 50 meters to the rear of the formation and 50 meters to the front of the formation.

5.10.5. For the purpose of this regulation, a formation is defined as 3 or more personnel moving on or near the edge of a roadway. All formations will move with the flow of traffic and will not exceed 4 ranks at any time. At no time will any member of the formation cross over the centerline of the roadway to exceed more than one half of the roadway.

5.10.6. Troop formations are not allowed to significantly interfere with traffic, and thus will not be conducted along main streets, especially during high traffic times.

5.11. Motor Vehicle Code.

5.11.1. Personnel will promptly comply with any lawful order or direction from any Security Forces member, safety representative, or other person designated by the installation commander to supervise and/or enforce compliance with traffic safety rules.

5.11.2. Operators will obey all 8 SFS instructions when given a visual or audible signal to bring their vehicle to a stop. The signal given by the 8 SFS member may be by hand, voice, emergency light or siren. The 8 SFS member giving such signals will be in uniform and his/her vehicle will be appropriately marked showing it to be an official 8 SFS vehicle. Operators will stop to the far right of the roadway.

5.11.3. Operators of all vehicles will obey all official traffic signs, markings, and other traffic control devices, unless otherwise directed by a 8 SFS member or other person performing traffic control functions.

5.11.4. No person will place, maintain or display upon any roadway or parking area, any sign, signal or device that attempts to direct the movement or parking of traffic without the prior approval of the Traffic Safety Working Group.

5.12. Road Conditions. Information regarding USFK Highway/Road Conditions can be found in USFKR 190-1, however refer to **Attachment 3** for a more detailed description of the locally defined road condition standards.

5.13. Accident Reporting.

5.13.1. Personnel involved in a major motor vehicle accident on the installation will immediately notify BDOC if one or more of the following occurs: disabling damage to a vehicle, injuries or fatalities involved, damages $10,000 or more to vehicles or property, or accidents which are difficult to explain. Such accidents or mishaps will be investigated by a certified traffic investigator. Do not leave the scene of the accident until released by responding SF.

5.13.2. All on-base minor accidents will be reported to the BDOC as soon as possible but no later than 72 hours after the accident.

5.13.3. Off-base accidents regardless of accident type will be reported to the nearest Korean National Police Agency and U.S. Military Police or 8 SFS unit. Military Police/8 SFS units will complete an Air Force Justice Information System (AFJIS) Report for all off-base accidents. Motorists involved in off-base accidents will not leave the scene except to secure medical aid or until released by an appropriate law enforcement agency.

5.13.4. All motor vehicle accidents investigated by the 8 SFS will be documented IAW DAFI 31-218, 8 SFS Operating Instruction (OI) 31-1V3, *Security and Law Enforcement Operations*, USFKR 190-1, and AF Form 1315, *Accident Report,* for major vehicle accidents. All major vehicle accidents, or accidents involving a GOV that are deemed criminal in nature, will require an AFJIS Report. In cases involving United States Air Force (USAF) GOVs or government property, 8th Fighter Wing Command Post (8 FW/CP) (784-7000) and 8 FW/SE (784- 1842) will be notified as soon as possible but no later than the first duty day after the accident.

5.14. Transporting Hazardous Materials, Heavy Equipment and Convoys.

5.14.1. All vehicles will be marked with a placard as prescribed by applicable safety instructions, and cards filled in and ready for immediate use and placed at a convenient point on the vehicle.

5.14.2. All vehicles will be equipped with the type, size and number of fire extinguishers required by applicable safety instructions. They will be filled and ready for immediate use and placed at a convenient point on the vehicle.

5.14.3. Military and civilian vehicles with heavy equipment will enter and exit the base through the Main Gate, including AAFES delivery vehicles.

5.14.4. Motorists approached by convoys escorted by SF or other emergency vehicles with red lights or other warning devices flashing will pull to the right of the roadway and come to a complete stop until the last vehicle in the convoy has passed. Motorists following the convoy from the rear are prohibited from passing and will follow the last vehicle in the convoy at a distance of not less than 100 feet.

Chapter 6

PARKING POLICIES

6.1. Parking Enforcement.

6.1.1. Due to limited parking spaces at Kunsan AB, it is essential to enforce parking controls for the proper maintenance, planning, and coordination of existing, non-designated, and future parking areas. 8 MSG/CC is responsible for the safe and efficient use of on and off street parking on the installation.

6.1.2. SF will enforce parking consistent with USFKR 190-1, USFKR 190-50, *La w Enforcement Procedures in Korea*, USFKR 190-7, and as prescribed by this instruction. Citations (DD Form 1408) will be issued to offenders or placed on the windshield of offending vehicles

6.1.3. Sections 1-13 of DD Form 1408 must be filled out by 8 SFS personnel or unit parking monitors in order for the citation to be processed by 8 SFS/S5R.

6.1.4. Unoccupied GOVs illegally parked must have vehicle information sections 5-13 filled out on the DD Form 1408. The ticket will be forwarded to the responsible unit and the unit vehicle officer/Non-Commissioned Officer (NCO) will be responsible for identifying the offending vehicle operator. The citation will be credited to the vehicle operator at the time of the incident.

6.2. Reserved Parking. Requests for reserved parking and/or signs will be submitted as work orders to the Civil Engineer Squadron (8 CES) and will be reviewed and approved thru the Traffic Safety Working Group chaired by the 8 MSG/CD.

6.3. Parking Restrictions.

6.3.1. On-Street Parking. Personnel will only park in spaces specifically designated for parking as indicated by a white pavement marking or parking sign. Parking on natural surfaces (i.e., grass, fields including areas around social lounges and dorm courtyard areas, non-paved areas) is prohibited.

6.4. 2-Wheeled Vehicle Parking.

6.4.1. All motorcycles, mopeds, and motor scooters on Kunsan AB should park in spaces in parking facilities and parking lots. These parking spots should be those that cannot be used by four-wheeled vehicles when parking will not impede the flow of traffic or promote a safety hazard (parking lot end caps are an acceptable example). Bicycle racks may be used when access does not cause a pedestrian concern or hazard, or prevent actual bicycle parking

6.4.2. Motorcycles, mopeds, and motor scooters are not authorized to be operated on sidewalks and should be turned off and walked to locations with bicycle racks.

6.5. Parking Restrictions for Emergency Vehicles.

6.5.1. Parking is strictly prohibited in fire lanes and must be maintained clear from obstruction at all times. Temporary stopping in a fire lane, not to exceed 5 minutes, is authorized for vehicle loading or unloading. The driver or operator MUST remain with the vehicle.

6.5.2. Vehicles parking on street curbs or street sides must be at least 15 feet away from fire hydrants.

6.5.3. Access for all emergency vehicles to buildings and fire department appliance connections (i.e., fire hydrants, standpipe connections, sprinkler connections) will be clear from road and vehicle obstructions at all times. Unobstructed access will be maintained to ensure fire department access to facility fire protection systems in case of real world emergencies. This policy includes access during base exercises.

6.6. Unattended Vehicles.

6.6.1. Persons operating or in charge of a motor vehicle will not park or allow it to stand unattended without first stopping the engine, placing the transmission in a low gear (manual) or park (automatic), locking the ignition switch, removing the key and setting the parking brake. When parked on a grade, turn the front wheels so the vehicle will roll against the curb or onto the side of the roadway.

6.6.2. Parking areas are clearly marked or lined, and vehicles will be parked between the lines.

6.6.3. Except when necessary to avoid conflict with other traffic or to be in compliance with directions of law enforcement personnel or an official traffic control device, vehicles will not be parked in any area not specifically designated for parking or violates parking restrictions.

6.7. Abandoned and Impounded Vehicles.

6.7.1. The registration form also serves as an official notice to all registrants that if their motor vehicle is left abandoned, not properly deregistered, or not properly disposed of they will be held liable for all costs incurred for the U.S. government to properly dispose of the vehicle. These costs include labor, transportation, storage and disposal charges. The last registered owner of an abandoned vehicle will also be the subject of an AF Form 3545, *Incident Report* for Failure to Properly Dispose of a Vehicle IAW USFKR 190-1.

6.7.2. Persons who operate a motor vehicle on an installation/garrison shall be deemed to have given consent for the removal and temporary impoundment of the motor vehicle when it is:

6.7.2.1. Parked illegally for unreasonable periods.

6.7.2.2. Interfering with operations.

6.7.2.3. Creating a safety hazard.

6.7.2.4. Disabled by accident.

6.7.2.5. Left unattended or abandoned in restricted or controlled area(s).

6.7.2.6. Not properly registered with Security Forces within the allotted time.

6.7.2.7. Failure to display valid license plate

Chapter 7

IMPOUNDING PRIVATELY OWNED VEHICLES

7.1. Overview.

7.1.1. Motor vehicles should not be impounded unless they clearly interfere with ongoing operations or movement of traffic, threaten public safety or convenience, are involved in criminal activities, contain evidence of criminal activity, stolen, abandoned or have outdated administrative paperwork. 8 SFS/CC may order the impoundment and towing of unattended vehicles for operational necessity.

7.1.2. Attempts should be made to locate the motor vehicle's owner to have the vehicle removed.

7.1.3. The vehicle may be towed to the SF Impound Lot and temporarily secured until the owner is found.

7.1.4. Another responsible person may be allowed to drive or tow the motor vehicle with permission from the owner, operator, or person empowered to control the vehicle, via Power of Attorney. In this case, the owner, operator, or person empowered to control the vehicle will be informed that law enforcement personnel are not responsible for safeguarding the motor vehicle.

7.2. Impounding Illegally Parked Vehicles.

7.2.1. Vehicles may be impounded when they are:

7.2.2. On a street or bridge, in a tunnel, or is double parked and interferes with the orderly flow of traffic.

7.2.3. On a sidewalk, within an intersection, on a crosswalk, on a railroad track, in a fire lane, or is blocking a driveway, so that the vehicle interferes with operations or creates a safety hazard to other roadway users or the general public.

7.2.4. When blocking an emergency exit door of any public place (installation theater, club, dining hall, hospital, and other facility).

7.2.5. In a "tow–away" zone that is marked with proper signs.

7.3. Operational Interference.

7.3.1. Vehicles may be impounded when they interfere with:

7.3.1.1. Street cleaning or snow removal operations after attempts to contact the owner have been unsuccessful.

7.3.1.2. Emergency operations during a natural disaster or fire or must be removed from the disaster area during cleanup operations.

7.3.1.3. The vehicle has been used in a crime or contains evidence of criminal activity.

7.3.1.4. The owner or person in charge has been apprehended and is unable or unwilling to arrange for custody or removal.

7.3.1.5. The vehicle is mechanically defective and is a menace to others using the public roadways.

7.3.1.6. The vehicle is disabled by a traffic incident and operator is either unavailable or physically incapable of having the vehicle towed to a place of safety for storage or safekeeping.

7.3.1.7. Law enforcement personnel reasonably believe the vehicle is abandoned.

7.3.1.8. The vehicle is interfering with Force Protection Condition (FPCON) measures.

7.4. Towing and Storage.

7.4.1. Impounded POV and GOV vehicles will be towed by 8 LRS.

7.4.2. All impounded vehicles will be stored in the impound lot. One set of keys will be maintained by 8 SFS Investigations (8 SFS/S2I).

7.4.3. Impounding and towing motor vehicles for violations of installation traffic code or criminal activities will be accomplished under direct supervision of 8 SFS/S2I personnel.

7.4.4. The vehicle impound lot is located in the lot on the corner of the streets Wolf Pack Way and Walmsley Ave. These streets are located East between building #603 and #802. The impound lot is maintained by 8 SFS/S2I.

7.5. Impoundment Procedures. Unattended privately owned vehicles require the following:

7.5.1. The DD Form 2504, *Abandoned Vehicle Notice,* will be placed on motor vehicles considered abandoned. The Law Enforcement personnel that issued the notice, will contact the BDOC to ensure a Blotter entry is made reflecting the vehicle was towed.

7.5.2. Owners of POVs will be allowed 3 days from the date the motor vehicle is tagged to remove the vehicle before impoundment action is initiated. If the vehicle has not been removed after 3 days, it will be towed by 8 LRS. Exception to this time period may be authorized at the discretion of the 8 SFS/CC.

7.5.3. After the vehicle is removed 8 SFS/S2I personnel will complete a DD Form 2506, *Vehicle Impoundment Report,* to record actions taken.

7.5.4. 8 SFS/S2I personnel will conduct an inventory of all property found in the vehicle.

7.5.5. DD Form 2507, *Notice of Vehicle Impoundment,* will be forwarded by certified mail to the address of the last known owner of the vehicle to advise the owner of the impoundment action and to request information concerning the owner's disposition intentions.

7.6. Vehicle Disposition After Impoundment.

7.6.1. If a motor vehicle is impounded for evidentiary purposes, the vehicle will be held according to legal authority direction. The vehicle must then be returned to the owner without delay unless directed otherwise by competent authority.

7.6.2. 8 SFS/S2I will attempt to locate the registered owner of an impounded vehicle and mail the owner a DD Form 2507 by certified mail. The owner will be instructed to either provide disposition instructions or sign the back to the DD Form 2507 releasing the vehicle to the government for disposal. The license plates and vehicle registration sticker will be turned into Kunsan Motor Vehicle Registration Office by 8 SFS/S5B. For individuals that live in Korea and resides off the installation a certified letter cannot be issued to them. They will be denied entry through DBIDS and the individual will be instructed to contact 8 SFS/S2I immediately.

7.6.3. If the last-known registered owner does not respond to the DD Form 2507 or cannot be determined, the vehicle will be maintained in the SF Impound Lot for a minimum of 45 days prior to the disposition. If the registered owner is known, the vehicle will be maintained for 120 days from the date the DD Form 2507 notice was issued. If there are no results in determining vehicle ownership, the vehicle will be disposed of IAW DoDM 4160.21-V1, *Defense Materiel Disposition: Disposal Guidance and Procedures,* or coordinated with 8 Fighter Wing Judge Advocate (8 FW/JA) for turning the vehicle over to Gunsan Motor vehicle Registration Office at no cost to the Government. License plates and vehicle registration sticker will be turn into Kunsan Motor vehicle Registration by 8 SFS/S5B.

7.6.4. Property that has a fair market value of $500 or more may not be disposed of until diligent effort has been made to find the owner, heirs, next of kin, or legal representative of the owner. Diligent effort requires notification of the registered owner, if the vehicle is registered. If not registered, diligent effort requires enough notice to the base populace to provide the owner an opportunity to come forward.

7.6.5. Efforts to make notifications will begin no later than 7 days after the property comes into custody or control of the law enforcement agency. Such efforts shall not exceed 45 days from the date of the first notice.

7.6.6. If the owner cannot be determined or found, the property may not be disposed of until the expiration of 45 days after the date of notice. The notice must include time and place of the intended sale or other disposition. The notice must be sent by certified or registered mail to that person at his or her last known address.

7.6.7. Property that has a fair market value less than $500 may be disposed of without delay if the owner or lien holder cannot be found or notified.

7.7. Stolen Vehicles or Vehicles Involved in Criminal Activity.

7.7.1. When the motor vehicle is held for evidentiary purposes, the vehicle will remain in the custody of 8 SFS/S2I or Air Force Office of Special Investigations (OSI).

7.7.2. Recovered stolen motor vehicles will be released to the registered owner unless held for evidentiary purposes or to a law enforcement agency reporting the vehicle stolen, as appropriate

7.7.3. A motor vehicle held on request of other authorities will be retained in the custody of 8 SFS Investigations or OSI until the vehicle can be released to such authorities.

7.8. Search of Impounded Vehicles.

7.8.1. Search of a motor vehicle in conjunction with impoundment based on criminal activity will likely occur in one of the following general situations:

7.8.1.1. Owner or operator not present. This situation could arise during traffic and crime–related impoundments and abandoned vehicle seizures. A property search related to an investigation of criminal activity should not be conducted without search authority unless the item to be seized is in plain view or is readily discernible on the outside as evidence of criminal activity. When in doubt, proper search authority should be obtained before searching via AF Form 1176, *Authority to Search and Seize*.

7.8.1.2. Owner or operator is present. This situation can occur during a traffic stop, criminal incident, if the operator is apprehended for a crime or serious traffic violation and sufficient probable cause exists to seize the vehicle, or intoxicated driving or traffic accidents in which the operator is present but incapacitated or otherwise unable to make adequate arrangements to safeguard the vehicle. If danger exists to the police or public or if there is risk of loss or destruction of evidence, an investigative type search of the vehicle may be conducted without search authority.

HENRY R. JEFFRESS III, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 31-1, *Integrated Defense,* 21 Jun 2018

DAFI 31-218, *Motor Vehicle Traffic Supervision,* 10 Dec 2021

AFI 91-207, *The US Air Force Traffic Safety Program,* 26 Jul 2019

AFI 31-115, *Law and Order Operations*, 18 Aug 2020

AFI 33-322, *Records Management and Information Governance Program*, 28 Jul 2021

AFMAN 31-115V1, *Department of the Air Force Corrections System*, 22 Dec 2020

DoDI 1400.25V630_AFI36-815, *Leave*, 14 Nov 2019

DoDM 4160.21-V1, *Defense Materiel Disposition: Disposal Guidance and Procedures,* 31 Aug 22

8 SFSI 31-1V3, *Security and Law Enforcement Operations,* 04 Jan 2021

USFKR 190-1, *Motor Vehicle Traffic Supervision*, 27 Sep 2021

USFKR 190-7, *Installation Access Control,* 13 Jul 20

USFKR 190-50, *Law Enforcement Procedures in Korea,* 13 Dec 2017

USFKI 1400.01, *Civilian Personnel Policies and Procedures – Korean Nationals*, 09 Dec 2022

Prescribed Forms

None

Adopted Forms

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 2220, *Department of Defense Registered Vehicle*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 2507, *Notice of Vehicle Impoundment*

AF Form 847, *Recommendation for Change of Publication*

AF Form 1168, *Statement of Suspect/Witness/Complaint*

AF Form 1176, *Authority to Search and Seize*

AF Form 1315, *Accident Report*

AF Form 2293, *US Air Force Motor Vehicle Operator Identification Card*

AF Form 3545A, *Incident Report*

AF Form 4391*, High-Risk Activities Worksheet*

USFK Form 31EK-E, *Application for Registration of USFK Privately Owned vehicle*

USFK Form 134EK, USFK *Motor Vehicle Operator's Permit*

USFK Form 192EK, *Temporary Vehicle Pass*

USFK Form 190-1P, *Personal Transportation Device Counseling and Endorsement Worksheet*

Abbreviations and Acronyms

AAFES—Army and Air Force Exchange Service

AB—Air Base

AFI—Air Force Instruction

AFJIS—Air Force Justice Information System

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRIMS—Air Force Records Information Management System

ANSI—American National Standards Institute

BAC—Blood Alcohol Content

BDOC—Base Defense Operations Center

CC—Commissioned Corps

COBs—Collocated Operating Bases

CPO—Civilian Personnel Office

DBIDS—Defense Biometric Identification System

DEROS—Date Eligible for Return from Overseas

DFC—Defense Force Commander

DIP—Driver Improvement Program

DoD—Department of Defense

DoDI—Department of Defense Instruction

DUI—Driving Under the Influence

DUSD—Deputy Under Secretary of Defense

ETP—Exception-To-Policy

FMVSS—Federal Motor vehicle Safety Standard

FPCON—Force Protection Condition

GOV—Government Owned Vehicle

GS—General Service

IAW—In Accordance With

JKO—Joint Knowledge Online

KGS—Korean General Service

KNP—Korean National Police

LSVs—Low-Speed Vehicles

MSF—Motorcycle Safety Foundation

NTV—Non-tactical vehicles

NAF—Non-appropriated Fund

NCO—Non-commissioned Officer

OR&L—Operator Record and Licensing

OPR—Office of Primary Responsibility

OSI—Office of Special Investigations

PBT—Potable Breathalyzer Test

PDA—Personal Digital Assistant

PED—Personal Electronic Device

POVs—Privately Owned Vehicles

PTD—Personal Transportation Device

RDS—Records Disposition Schedule

RMV—Recreational Motor Vehicle

ROK—Republic of Korea

ROKAF—Republic of Korea Air Force

SJA—Staff Judge Advocate

SOFA—Status of Forces Agreement

TAD—Temporary Additional Duty

TDY—Temporary Duty

UCMJ—Uniform Code of Military Justice

US—United States

USFK—United States Forces Korea

USFKR—United States Forces Korea Regulation

VRO—Vehicle Registration Office

WG—Wage Grade

WL—Working Leader

WS—Wage System

8 FW/CC—8th Fighter Wing Commander

8 FW/CV—8th Fighter Wing Vice Commander

8 SFS/CC—8th Security Forces Squadron Commander

8 CES/CC—8th Civil Engineering Squadron Commander

8 FW/SE—8th Fighter Wing Safety Office

8 MSG/CD—8th Mission Support Group Deputy Commander

8 LRS/LGRDDO—8th Logistics Readiness Squadron Distribution Deployment Operations Office

8 SFS/S5R—8th Security Forces Squadron Reports and Analysis Section

8 SFS/S5B—8th Security Forces Squadron Pass & Registration

8 LRS/CC—8th Logistics Readiness Squadron Commander

8 MSG/CC—8th Mission Support Group Commander

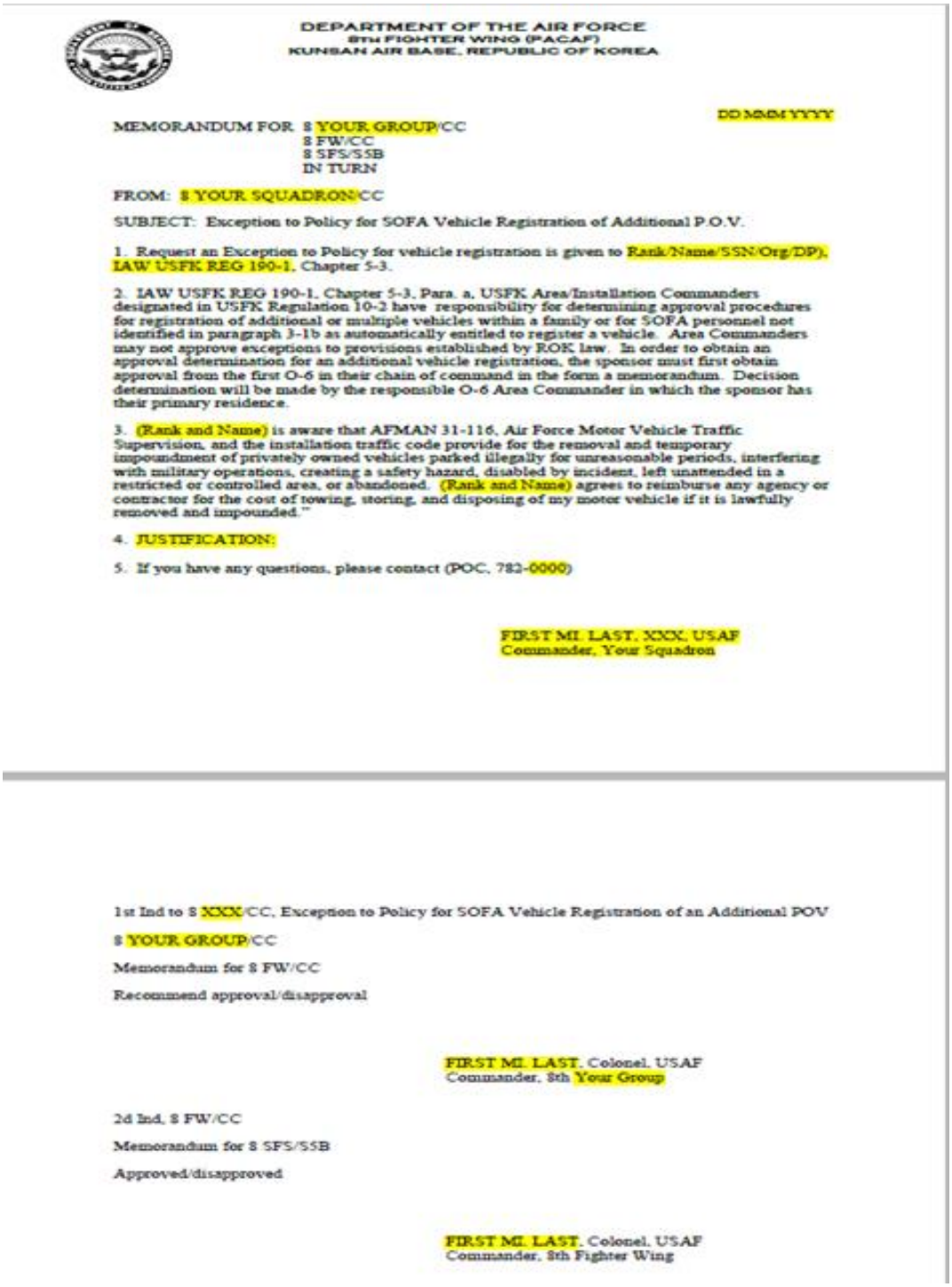
8 SFS/S2I—8th Security Forces Squadron Investigations

8 FW/JA—8th Fighter Wing Judge Advocate

Attachment 2

SAMPLE LETTER FOR ETP FOR SECOND VEHICLE

Figure A2.1. Sample Letter for ETP for Second Vehicle.



DEPARTMENT OF THE AIR FORCE
8TH FIGHTER WING (PACAF)
KUNSAN AIR BASE, REPUBLIC OF KOREA

DD MMM YYYY

MEMORANDUM FOR 8 YOUR GROUP/CC
8 FW/CC
8 SFS/S5B
IN TURN

FROM: 8 YOUR SQUADRON/CC

SUBJECT: Exception to Policy for SOFA Vehicle Registration of Additional P.O.V.

1. Request an Exception to Policy for vehicle registration is given to Rank/Name/SSN/Org/DP), IAW USFK REG 190-1, Chapter 5-3.

2. IAW USFK REG 190-1, Chapter 5-3, Para. a, USFK Area/Installation Commanders designated in USFK Regulation 10-2 have responsibility for determining approval procedures for registration of additional or multiple vehicles within a family or for SOFA personnel not identified in paragraph 3-1b as automatically entitled to register a vehicle. Area Commanders may not approve exceptions to provisions established by ROK law. In order to obtain an approval determination for an additional vehicle registration, the sponsor must first obtain approval from the first O-6 in their chain of command in the form a memorandum. Decision determination will be made by the responsible O-6 Area Commander in which the sponsor has their primary residence.

3. (Rank and Name) is aware that AFMAN 31-116, Air Force Motor Vehicle Traffic Supervision, and the installation traffic code provide for the removal and temporary impoundment of privately owned vehicles parked illegally for unreasonable periods, interfering with military operations, creating a safety hazard, disabled by incident, left unattended in a restricted or controlled area, or abandoned. (Rank and Name) agrees to reimburse any agency or contractor for the cost of towing, storing, and disposing of my motor vehicle if it is lawfully removed and impounded."

4. JUSTIFICATION:

5. If you have any questions, please contact (POC, 782-0000)

FIRST MI. LAST, XXX, USAF
Commander, Your Squadron

1st Ind to 8 XXX/CC, Exception to Policy for SOFA Vehicle Registration of an Additional POV

8 YOUR GROUP/CC

Memorandum for 8 FW/CC

Recommend approval/disapproval

FIRST MI. LAST, Colonel, USAF
Commander, 8th Your Group

2d Ind, 8 FW/CC

Memorandum for 8 SFS/S5B

Approved/disapproved

FIRST MI. LAST, Colonel, USAF
Commander, 8th Fighter Wing

Attachment 3

KUNSAN AB ROAD CONDITION MATRIX

Figure A3.1. Kunsan AB Road Condition Matrix.

Road Condition	Visibility Snow/Ice	GOV	POV	Motorcycles Mopeds/ Bicycles/ PTDs	Bus/Taxi Commercial	Other Comments	Approval Authority
Green	Highway conditions are normal	Normal	Normal	Normal	Normal	All roads are accessible/normal	DFC
Amber	**Visibility:** <50 meters on road due to weather (snow, fog, heavy rain, etc.) **Ice:** <30% patch ice accumulation per km of driving surface **Snow:** <2" snow accumulation over 20%-30% per km of driving surface	On/Off installation essential travel only, **Use Caution When Driving Under These Conditions**	On/Off installation essential travel only, **Use Caution When Driving Under These Conditions**	***Mode of travel not permitted	Maintain normal operations and only used for essential trips Base shuttle bus continues as normal	Max speed limit 15 MPH/24 KPH Drive with caution Consider early release if RED road conditions are expected Restrict unnecessary movement	MSG/CC
Red	**Visibility:** <25 meters on road due to weather (snow, fog, heavy rain, etc.) **Ice:** 30%-50% patch ice accumulation per km of driving surface **Snow:** >2" snow accumulation over at least 50% per km of driving surface, and near total snow coverage of driving surface	Mission essential travel only, as determined by unit CC Must have CC approval to drive off installation **Must have tire chains or similar device designed for heavy snow conditions	Essential travel permitted only (to get to/from work only) as determined by unit CC Can exit/enter installation. Recommended to have tire chains or similar device designed for heavy snow conditions	Mode of travel not permitted	Base shuttle bus continues if conditions do not hinder safety Commercial vehicles, taxis, and contract buses for essential travel as determined by unit CC (to get to/from work only). Can enter/exit installation Recommended to have tire chains or similar device designed for heavy snow conditions	Max speed limit 15 MPH/24 KPH Drive with extreme caution Consider stand-up of CAT+ to determine implementation of early release actions as authorized by the FW/CC Restrict unnecessary movement, as determined by unit CC	MSG/CC

Black	**Ice:** >50% ice accumulation per km of driving surface **Snow:** >4" of snow accumulation over all or nearly all of driving surface 8 FW/CC deems other factors present to issue Road Conditions Black	All U.S. Government owned, leased, operated vehicles are prohibited from movement with the exception of snow and ice control operations	POVs entering the installation are directed to the nearest available parking space inside the installation or denied entry if they are unwilling to park Vehicles found in movement on the installation are ordered to park in the nearest available parking space. SOFA plated POVs are not allowed to exit the installation without 8 FW/CC approval	Mode of travel not permitted	All taxis, buses, and commercial vehicle travel is not permitted. CANNOT enter/CAN exit installation Commercial vehicles are denied access to the installation, but are allowed to exit the installation	Installation closed to emergency response and snow/ice operations Emergency dispatch authority delegated to CES, SFS, and MDG CCs	FW/CC

NOTES: **Reference USFKR 190-1, Appendix D *Highway/Installation Road Condition Matrix.*
***Recommendation by Wing Safety Office based on historical data.

NOTES CONTINUED: This guidance applies to all Active Duty Military, SOFA status employees, contractors, dependents, KN employees, and Non-SOFA contractors while on Kunsan AB.
Notification to Civilians:

I. In the event of severe weather and safety concerns, and proper notification, 8 FW/CC authorizes supervisors of all "non-mission essential" U.S. and Korean National civilian employees to release their employees from work under Weather and Safety considerations, without charge to leave or loss of pay, in accordance with Department of Defense Instruction (DoDI)1400.25V630_AFI36-815, *Leave*, and USFKI 1400.01, *Civilian Personnel Policies and Procedures – Korean Nationals*. Absences of those non-mission essential civilian employees will be charged as administrative leave.
II.
III. Upon the early release notification, all "non-mission essential" personnel residing off-base, will immediately secure their work areas and exit the base. Exceptions must be approved by their supervisor. This early release policy does not apply to Non-SOFA contractors.